

**BEFORE THE SOLE ARBITRATOR
SR. ADV. NITIN N. N. P. SARDESSAI
AT PANAJI – GOA**

VIKRAM SHAH

...CLAIMANT

VERSUS

RIVA TRINDADE AND 3 ORS

...RESPONDENTS

**MINUTES OF PROCEEDINGS HELD ON 19TH FEBRUARY
2025 AT 11.00 AM**

1. Adv. Kaif Noorani appeared on behalf of Shri. Vikram Shah. Adv. Vledson Braganza appeared on behalf of Mr. Riva Trindade, Mrs. Albertina Trindade and Mrs. Karita Trindade. Mr. Riva Trindade present in person. Adv. Raunaq Rao appeared for Shri. Murlidhar Sadarangani. Mr. Hemavand Namdarian the authorized representative of the Claimant is present in person.
2. Adv. V. Braganza states that he requires 2 weeks time to file his statement of defence. Adv. K. Noorani objects to two weeks being granted as he claims that there is an urgency in the matter which was made out on 25.01.2025 itself. In view of the urgency stated not disputed by the parties concerned, Adv. V. Braganza graciously states that he will file his statement of defense by the 01st of March 2025 and give a copy thereof to the respective parties by the 28th of February 2025.

3. Adv. Braganza has filed an application dated 15.02.2025, the softcopy of which was served on the Tribunal as well as the concerned parties on 15.02.2025 itself. The Claimant and Respondent No. 4 seek time to file their replies to the said application by the 01st March 2025 and an advance copy of the same shall be handed over to Advocate for Respondent No. 1, 2 and 3 by 28.02.2025.
4. Adv. K. Noorani has filed an application dated 19.02.2025 to bring on record letter dated 20.11.2020. The same is not objected by Adv. V. Braganza and Adv. R. Rao.
5. The statements made by the concerned parties regarding filing of Written Statement or statement of defense/ replies are accepted. The matter is fixed by consent of the parties on 01st March 2025 at 07.30 PM at the same venue as today.
6. The typographical error in proceedings sheet dated 25.01.2025 needs a correction. The same is hereby made with the consent of the parties. The proceeding sheet dated 25.01.2025 which reads "Mr. Hemavand Namdarian the authorized representative of Respondent No. 1" is hereby corrected and the same should be read as authorized representative of the Claimant.
7. The corrected proceeding sheet shall be emailed to the respective parties.
8. **Matter is fixed on 01st March 2025 at 07.30 PM for arguments on the prayer for receivership and application filed by Adv. V. Braganza dated 15.02.2025.**

9. Stand Over to 01.03.2025.



Place: Panaji – Goa.
Date: 19.02.2025

Sr. Adv. Nitin N. N. P. Sardesai
Sole Arbitrator

From:

To:

To:

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1. Mr. Pascoal Tomicad and
 2. Mrs. Albertina Tomicad
 3. Mr. Patricio Tomicad, Joint Owners, School
 Dona Paula, Goa
 Date: 20/11/2013

To,
 Managing Committee
 Comunidade of Bambolim
 Having office at Bambolim
 Taluka Tiswadi, Goa

Subject: Settlement proposed with respect to various litigation in
 respect to the properties under survey no. 93/2, 93/3
 and 93/4 of village Bambolim, Taluka Tiswadi, Goa.

Sir,

With reference to above and in pursuance of discussions we hereby give
 the proposal for the settlement as referred above as under:

- I. Transfer of Settlement area admeasuring 5,000 sq. mts. in any one
 out of the above referred properties i.e. 93/2, 93/3, 93/4 property
 demarcated and Fenced.
- II. Payment of Compensation of Rs 10,00,00,000/- (Rupees Ten Crore
 Only) payable to Comunidade of Bambolim.
- III. Construction of Cultural/ Sports Arena on the above mentioned
 5,000 m2 area consisting of Basketball Court, Badminton Court,
 Volleyball Court, a Stage, and Ladies and Gents Toilets.

Subject to above compliances by us and filing of Consent Terms after
 obtaining due consent of various authorities in accordance with the
 existing rules and regulations all the disputes and litigations stands
 withdrawn viz. special Civil Suit No. 52/2013/A as well as in MCA No
 6/2016/B pending before Civil Judge Senior Division at Panaji, Civil
 Suit No. 56/2009 pending before District Court, North Goa at Panaji
 and also LRC Case no. 19/2009 pending before Deputy Collector at
 Panaji.

We agree that the terms of settlement shall be drawn in consultation
 with the advocate of the Comunidade and we shall bear legal
 expenses, filing terms in the court. We will pay the amount on the date
 of signing the consent terms and presentation of the same before the
 Court by obtaining the approval of Administrative Tribunal in Special

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File No.

From:

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Civil suit No. 52/2013 and the Communidade shall not make any further claim against us and remaining land under survey no. 93/2, 93/3 and 93/4 of village Bambolim, Goa. The sketch/plan of the proposed construction is enclosed.

You are requested to proceed with the procedure by accepting above terms and giving letter of acceptance by the managing committee of the Communidade of Bambolim at the earliest.

Thanking You,

Yours faithfully,

Mr. Pascoal Trinidad

Mrs. Albertina Trinidad

Encl: Sketch of Proposed construction

C/c to: 1. Communidade of Bambolim Advocate Mr. Pranay Karnat
2. Our Advocate Mr. Raunak Rao